SUPERIOR COURT OF CALIFORNIA

CITY AND COUNTY OF SAN FRANCISCO

APPELLATE DIVISION

FILED
Superior Court of California
County of San Francisco
APPELLATE DIVISION
MAY 08 2024
CLERK OF THE COURT
BY: Deputy Clerk

Willians Calles-Pineda, *Petitioner*, v. **San Francisco Superior Court,** *Respondent*; **People of the State of California,** *Real Party in Interest.*	No. APP-24-8801 Superior Court No. 23005326

PETITION FOR A WRIT OF MANDATE OR PROHIBITION

after order denying motion to dismiss pursuant to Penal Code section 1382
by Hon. Victor Hwang

STAY OF JURY TRIAL REQUESTED

Jury trial call on May 8, 2024 at 9:00 a.m.
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QUESTION PRESENTED

Respondent court reopened its courtrooms in June 2021 after social distancing and indoor capacity limits were lifted. California's COVID-19 state of emergency was rescinded in February 2023. Over the last three years, the Civic Center Courthouse was capable of holding out-of-custody misdemeanor trials, but only a limited number were sent there; meanwhile, respondent court held hundreds of non-urgent civil trials, including more than a hundred jury trials. As a result, the misdemeanor backlog increased by a factor of seven since reopening.

Calles-Pineda's case was continued past its statutory deadline in late 2023 and early 2024. He moved to dismiss the case. Respondent court denied the motion, relying on judicial notice to find that COVID-19 still justified trial delays.

The question presented is whether respondent court erred by failing to dismiss this case.

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SUPERIOR COURT OF CALIFORNIA

CITY AND COUNTY OF SAN FRANCISCO

APPELLATE DIVISION

Willians Calles-Pineda, *Petitioner*, v. **San Francisco Superior Court,** *Respondent*; **People of the State of California,** *Real Party in Interest.*	No. APP-24-_____ Superior Court No. 23005326

PETITION FOR A WRIT OF MANDATE OR PROHIBITION

Petitioner Willians Calles-Pineda alleges:

I. Introduction

1. This is another case in which respondent court found that the COVID-19 pandemic constituted good cause to continue misdemeanor trials in late 2023 and early 2024.

2. This Court has previously denied similar petitions. But the Court of Appeal has now issued stays and *Palma* notices in three such cases. (*Leibrand v. Superior Court*, no. A170134; *Mendoza v. Superior Court*, no. A170135; *Bonner v. Superior Court*, no. A170183.)

3. Calles-Pineda requests that this Court grant a stay of trial proceedings and defer further consideration of this case pending the decision of the Court of Appeal.

4. Deferring review would serve the interest of judicial economy. It would limit the number of urgent follow-on writ petitions that otherwise would be filed, would reduce the number of courts that must independently consider the same question, and would avoid the need for multiple written decisions. And it would enable this Court to rule with the benefit of additional guidance from the Court of Appeal.

II. Parties and jurisdiction

5. Calles-Pineda is the defendant in *People v. Willians Calles-Pineda*, no. 23005326, a misdemeanor case pending in respondent court. The People of the State of California are the plaintiff and are named as real party in interest.

6. This Court has jurisdiction under article VI, section 10 of the California Constitution and Code of Civil Procedure sections 1085 and 1103.

7. The exhibits attached to this petition are true and correct copies of the documents listed in the Table of Exhibits.

III. Procedural history

8. Calles-Pineda was charged in a misdemeanor complaint with driving under the influence of alcohol, driving with a blood alcohol content of 0.08% or more, and a traffic infraction. (Exh. A, complaint, 1 PE 7.)

9. On May 11, 2023, he was arraigned, entered not guilty pleas, and requested a speedy trial. (Exh. B, minute order (May 11, 2023), 1 PE 11.) Respondent court set June 26, 2023 as his last day for trial. (*Ibid.*)

10. On June 26, 2023, respondent court (Puri, J.) found good cause to continue Calles-Pineda's trial past its statutory deadline. (Exh. C, minute order (June 26, 2023), 1 PE 13.) It entered a standard "good cause" order, which has been ordered and will be provided to this Court when received.

11. On September 25, 2023, respondent court (Massullo, J.) further continued the trial to November 27, 2023. (Exh. D, minute order (Sept. 25, 2023), 1 PE 15.)

12. On November 27, 2023, respondent court (Puri, J.) further continued the trial to March 5, 2024, setting a new last day of March 15. (Exh. E, minute order (Nov. 27, 2023), 1 PE 17.)

13. Calles-Pineda filed a motion to dismiss the case. (Exh. F, Motion to Dismiss for Speedy Trial Violation, 1 PE 19.)[1]

14. On March 5, 2024, Calles-Pineda entered a *Gin/Johnson* waiver because his counsel was in trial in another case. Respondent court (Hwang, J.) continued the trial to March 29, 2024 without ruling on the motion to dismiss. (Exh. G, minute order (Mar. 5, 2024), 1 PE 36.)

15. On March 29, 2024, respondent court continued the trial to April 5, 2024 without ruling on the motion to dismiss. (Exh. H, minute order (Mar. 29, 2024), 1 PE 38.)

16. On April 5, 2024, respondent court (Jacobs, J.) granted the prosecution's motion to continue, and continued the trial to April 29, 2024 without ruling on the motion to dismiss. (Exh. I, minute order (Apr. 5, 2024).)

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[1] Respondent court ordered that three compact discs, filed in *People v. Waterman*, no. 23015368, be deemed filed in Calles-Pineda's case, to avoid the need to file a large number of duplicate discs. (Exh. W-A, General Order re: Compact Discs, 2 PE 304, 306; Exh. W-F, Second General Order re: Compact Discs, 10 PE 1963, 1965.) The discs contained three declarations of counsel and fifty-three exhibits. (Exhs. W-B, W-C, 1-49, 2 PE 307-8 PE 1850; Exhs. W-D, W-E, 50, 9 PE 1853-1959; Exhs. W-G, W-H, 51-53, 10 PE 1966-2012.) This evidence is laid out in section IV below.

17. On April 5, 2024, the prosecution filed a response to the motion in which it conceded that Calles-Pineda's speedy trial right had been violated. (Exh. J, Prosecution's Memorandum of Points and Authorities, 1 PE 42.)

18. On April 29, 2024, respondent court continued the trial to May 8, 2024. (Exh. K, minute order (Apr. 29, 2024), 1 PE 50.)

19. On May 8, 2024, respondent court denied the motion to dismiss. (Exh. L, minute order (May 8, 2024), 1 PE 52.)

20. The order to dismiss filed in Calles-Pineda's case was in a standard form. Calles-Pineda attaches a template of the order provided by respondent court, and will provide the copy filed in his case when it is produced. (Exh. M, Template for Order Denying Motion to Dismiss, 1 PE 54.)

IV. Factual background

21. The evidentiary record in this case consists of three declarations and fifty-three exhibits filed by the defense in support of the motion to dismiss. The following is a summary of its contents.

22. On June 15, 2021, the San Francisco health officer's "Safer Return Together" order came into effect. (Exh. 1, San Francisco Health Officer, Order no. C19-07y (updated July 8, 2021), 2 PE 320.) The order lifted indoor capacity limits and social distancing requirements. (*Ibid.*)

23. In response, the superior court announced that it would "fully open" on June 28, 2021, with "services re-expanded to pre-pandemic levels." (Exh. 2, San Francisco Superior Court, Press Release (June 25, 2021), 2 PE 336.)

24. On April 6, 2022, the California Department of Public Health stopped recommending quarantine for people who were exposed to COVID-19 but had no symptoms.[2]

25. Effective April 30, 2022, the Chief Justice rescinded the remaining provisions of her statewide emergency orders.[3] And effective June 30, 2022, the Governor rescinded the remaining provisions of his emergency order relating to the judiciary. (Exh. 3, Executive Order no. N-04-22 (Feb. 25, 2022), ¶ 17, 2 PE 342 [rescinding Executive Order no. N-38-20, ¶¶ 1-5].)[4]

26. Superior courts in Contra Costa, Alameda, Sacramento, Los Angeles and Marin all eliminated their backlogs in 2022. (Exhs. 45-49, declarations of Diana Garrido, Christine O'Hanlon, Patrick Jensen, David Lynch and Nick Stewart-Oaten, 8 PE 1838-1850.) And over the course of the year, superior courts in other counties that had previously relied on local emergency orders issued under Government Code section 68115 to continue jury trials returned to normal operations. Since late 2022, no COVID-19 local

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[2] California Department of Public Health, "Guidance on Isolation and Quarantine for COVID-19" (Apr. 6, 2022), at <https://www.cdph.ca.gov/Programs/CID/DCDC/Pages/COVID-19/Guidance-on-Isolation-and-Quarantine-for-COVID-19-Contact-Tracing-4-6-2022.aspx>.

[3] California Courts Newsroom, "California Chief Justice Rescinds Temporary Emergency Measures" (Mar. 3, 2022), at <https://newsroom.courts.ca.gov/news/california-chief-justice-rescinds-temporary-emergency-measures>.

[4] In a press release anticipating the termination of the state of emergency, the Secretary of the California Health and Human Services Agency remarked: "While the threat of this virus is still real, our preparedness and collective work have helped turn this once crisis emergency into a manageable situation." (Office of the Governor, "Governor Newsom to End the COVID-19 State of Emergency" (Oct. 17, 2022), at <https://www.gov.ca.gov/2022/10/17/governor-newsom-to-end-the-covid-19-state-of-emergency/>.)

emergency orders permitting 30-day trial extensions have been issued. (Exh. 4, California Courts Newsroom, Court Emergency Orders, 2 PE 346–370.)

27. On February 28, 2023, the Governor terminated the COVID-19 state of emergency in California. (Exh. 5, Proclamation Terminating COVID-19 Emergency (Feb. 28, 2023), 2 PE 373.)

28. Also on February 28, 2023, the San Francisco health officer terminated the COVID-19 local health emergency. (San Francisco Health Officer, Termination of Local Health Emergency (Feb. 28, 2023), 2 PE 376.)

29. On April 10, 2023, the President signed a joint resolution terminating the national emergency relating to the COVID-19 pandemic. (Pub. L. No. 118–3 (Apr. 10, 2023), 137 Stat. 6.)

30. On May 5, 2023, the Director-General of the World Health Organization declared that COVID-19 "no longer constitutes a public health emergency of international concern," but was instead an "established and ongoing health issue." (World Health Organization, Statement on the COVID-19 Pandemic (May 5, 2023), 2 PE 378.)

31. On May 11, 2023, the federal public health emergency relating to the COVID-19 pandemic lapsed without being renewed. (Exh. 9, 2 PE 391.)

32. The San Francisco Superior Court has a dedicated civil courthouse, known as Civic Center. It contains twelve trial courtrooms, and has long served as an overflow courthouse for misdemeanor trials.

33. From 2018 to March 2020, 169 misdemeanor trials were sent to Civic Center: of those, 119 were tried to verdict or hung jury, 15 were dismissed, 12 were resolved by plea, 16 were continued, and seven bench warrants were issued. (Exh. 10, List of misdemeanor trials at Civic Center (Jan. 1, 2018–Mar. 17, 2020), 2 PE 408–411.) Departments 220, 303, 305, 306, 318, 504, 505, 606 and 624 each hosted multiple criminal trials. (*Ibid.*)

34. Twenty-five deputies work at Civic Center, including one dedicated to criminal trials and four "floaters." (Exh. 25, Letter of Agreement between Superior Court and Sheriff, 7 PE 1591.) As respondent court acknowledged, this gives the courthouse the ability to host five criminal trials at once.

35. Since 2020, the Court has refused to assign felony trials to Civic Center, citing security concerns. It did, however, permit "non-violent" out-of-custody misdemeanor trials to be held at Civic Center, and in early 2022, it broadened this rule to allow all out-of-custody misdemeanor trials to be heard there. (See Exh. 12, Criminal daily court status reports (June 28, 2021–Jan. 16, 2024), 3 PE 502 [domestic battery trial in Civic Center on Mar. 15, 2022].) Since the Hall of Justice was largely occupied with felony trials, Civic Center was perfectly positioned to work down the misdemeanor backlog.

36. But respondent court wasted this opportunity. For years, it sent only a slow trickle of misdemeanor trials to Civic Center.

37. This diagram on the next page shows the number of criminal trials that were being held in Civic Center on each day from July 2021 to December 2023, based on the court's records. (Exh. 13, Diagram showing misdemeanor trials at Civic Center (July 2021–Dec. 2023), 2 PE 413; Exh. 12, 3 PE 416–4 PE 887 [underlying data].)[5]

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[5] The diagram submitted to respondent court contained a formatting error: in months with 30 days, instead of leaving the 31st day blank, the diagram showed the 1st day of the next month. (See 2 PE 413.) This error does not affect the diagram's accuracy, and it has been corrected on the next page.

Number of Civic Center courtrooms in use for criminal trials, July 2021–December 2023

		1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18	19	20	21	22	23	24	25	26	27	28	29	30	31
2021	July	0	0				0	0	1	1			1	1	1	1	1			0	ND	ND	1	1			1	1	1	1	1	
	Aug		0	0	0	0	0			0	0	0	0	0			0	0	0	0	0			0	0	0	0	0			0	0
	Sept	0	0	0				ND	0	0	0			0	0	0	1	ND			ND	ND	ND	0	0			0	0	0	0	
	Oct	0			0	0	0	0	0				0	0	0	0			0	0	0	0	0			0	0	0	0	0		
	Nov	0	0	0	0	0			1	2	1		1			1	1	1	1	1			1	1	0					0	0	
	Dec	0	0	0			0	0	0	0	1			0	0	0	1	1			1	0	0	0				0	0	0	0	
2022	Jan			0	0	0	0	0			0	0	0	1	1				1	1	1	0			0	0	0	0	0			0
	Feb	0	1	1	1			1	1	1	0				0	0	0	0	0				0	0	0	0			1			
	Mar	1	1	1	1			1	0	0	1	1			1	2	2	2	2			2	2	1	1	1			1	1	1	
	Apr	1			1	1	1	0	0			0	0	0	0	0			0	1	1	1	1			0	0	0	0	0		
	May		0	1	1	1	1			1	1	1	1	0			0	0	1	1	1			1	2	2	2	1				1
	June	0	0	2			2	2	2	2	2			2	2	2	2	1			1	1	2	1	1			1	0	0	0	
	July	0				1	1	1	1			1	1	1	1	1			0	0	0	0	0			1	1	1	1	1		
	Aug	1	2	2	2	2			0	0	0	0	0			0	0	1	1	1			1	1	0	0	0			0	1	1
	Sept	1	1				1	1	1	1			2	0	0	0	0			0	1	1	1				1	1	1	0	0	
	Oct			0	0	0	0	0			0	0	0	0	0			0	1*	1*	1*	1*			1*	1*	1*	1*	1*			1*
	Nov	1*	1*	1*	1*			1*	1*	2	2				2	2	0*	0*	0*			0*	0*	1					1	2	2	
	Dec	2	2			2	2	2	2	0			0	0	0	0	0			0	0	0	0	0				0	0	0	0	
2023	Jan			0	0	0	0			0	0	0	0	0				0	0	0	0			0	0	0	0	0			0	0
	Feb	0	0	0			0	0	0	0	0				2*	2*	2*	2*				2	2*	2*	2			2	2			
	Mar	2	1	2			2	2*	2*	2*	2*			2	1	1	0*	2*				2	2	2	3			3	3	3	3	
	Apr			3	2	1	0	2*			2	2	2	1	1			2	2	2	2	2			2	2	2	2	2			
	May	2	2	2	2	2			1	1	1	1	2			2	2	2	2	2			2	2	2	2	2			2	2	2
	June	2	2			2	2	2	2	2			2	2	2	2	2				2	2	1	2			2	2	2	2	0	
	July			0		0	2	1			1	1	0	0	0			0	1	1	1	1			1	2	2	2	2			2
	Aug	2	2	2	2			1	1	1	1	1			1	1	0	0	2			2	2	2	1	0			2	2	2	2
	Sept	2				1	1	1	1			1	2	2	1	1			1	1	1	0				0	1	1	3	3		
	Oct		3	2	2	1	2			2	0	2	2	2			2	2	1	2	2			2	2	2	2	2			2	2
	Nov	2	3	3			3	3	3	3				3	2	2	2	2			2	2	2					2	2	2	2	
	Dec	2			2	2	2	2	2			2	2	2	2	2			2	2	2	2	1				1	1	1	1		

This diagram shows the number of Civic Center courtrooms in use for criminal trials on each court day, according to the criminal daily court status report for that day.
* On days marked with an asterisk, the number of courtrooms in use is lower than the "Criminal Trials at CCC" figure shown on page 1, likely because it includes additional trials that are trailing in a Civic Center department.

Key: weekend or holiday | 0 no courtrooms used | 1 1 courtroom used | 2 2 courtrooms used | 3 3 courtrooms used | ND no data

38. As can be seen in the diagram, on most court days between July 2021 until February 10, 2023 (220 of 393), there were no criminal trials happening in Civic Center at all. For one third of those days (135 of 393), Civic Center was hosting a single criminal trial. And on ten percent of those days (38 of 393), Civic Center was hosting two trials. It never held more than two trials at once during that period.

39. On February 14, 2023, respondent court set aside just two courtrooms—departments 514 and 624—for out-of-custody misdemeanor trials. For the rest of the year, criminal trials were sent almost exclusively to these two departments.

40. As a result of this underuse, the annual number of misdemeanor trials dropped dramatically. 159 misdemeanor cases were tried in 2019, including 89 trials at Civic Center. (Exh. 50, Reports from Superior Court's Chief Data Officer, 9 PE 1944; Exh. 10, lines 76–164, 2 PE 409–411.) But in 2020, only 18 misdemeanor cases were tried in San Francisco; in 2021, 26 cases were tried; in 2022, 29 cases were tried; and in 2023, 45 cases were tried. (Exh. 50, 9 PE 1944.)

41. In contrast to the zero, one or two Civic Center courtrooms handling misdemeanor cases, respondent court made numerous courtrooms available for its civil docket.

42. In January 2021—months before social distancing restrictions were lifted—the presiding judge held a webinar with civil litigators, in which he announced that "[a]ll the courtrooms in Civic Center are open for bench trials and jury trials." (Exh. 16, transcript of State of the Court Update webinar (Jan. 29, 2021), 5 PE 1078, 69:11–13.)

43. True to the presiding judge's promise, respondent court tried a large volume of civil cases in the years that followed.

44. In fiscal year 2020–21, respondent court held 180 civil trials, of which 16 were jury trials. (Exh. 19, Judicial Council, 2022 Court Statistics Report, 6 PE 1353, p. 94 [16 jury trials]; 6 PE 1352, p. 92 [164 limited and unlimited court trials].) It also held 302 small claims trials. (*Id.*, 6 PE 1365, p. 118.)

45. In fiscal year 2021–22, respondent court held 369 civil trials, of which 49 were jury trials. (Exh. 18, Judicial Council, 2023 Court Statistics Report, 6 PE 1254, p. 107 [49 jury trials]; 6 PE 1253, p. 105 [320 limited and unlimited court trials].) It also held 305 small claims trials. (*Id.*, 6 PE 1266, p. 131.)

46. In fiscal year 2022–23, respondent court held 401 civil trials, of which 52 were jury trials. (Exh. 17, Judicial Council, 2024 Court Statistics Report, 6 PE 1154, p. 94 [52 jury trials]; 6 PE 1153, p. 92 [349 limited and unlimited court trials].) It also held 424 small claims trials. (*Id.*, 6 PE 1166, p. 118.)

47. Respondent court's own Chief Data Officer noted the striking disparity between the court's approach to its civil and criminal backlogs. In a March 2023 presentation, he pointed out that the court had conducted at least thirty civil trials per month for sixteen months in a row, with the result that the *civil* backlog was cleared in June 2022 and remained at zero; by contrast, the court had averaged only 4.0 felony trials and 2.0 misdemeanor trials a month for the previous twelve months, compared to 7.7 and 13.3 respectively before the pandemic. (Exh. 50, Reports from Superior Court's Chief Data Officer, 9 PE 1958–1959.)

48. The misdemeanor backlog exploded in the years following reopening. On October 13, 2021, there were just 98 no-time-waiver misdemeanor trials in the queue. (Exh. 22, no-time-waiver misdemeanor trial list (Oct. 31, 2021), 7 PE 1497–1498.) But by January 2, 2024, there were 743 no-time-waiver misdemeanor cases awaiting trial. (Exh. 23, no-time-waiver misdemeanor

trial list (Jan. 2, 2024), 7 PE 1500; accord Exh. 50, 9 PE 1946 [chart]; 9 PE 1949 [noting increase].)

49. The backlog was not the result of mass speedy trial assertions by the defense.

50. Respondent court claimed that the Public Defender's office set cases for trial at an "extreme" rate, that general time waivers were entered in only nine cases in April 2023, and that there were never more than fourteen cases in general-time-waiver status from May 2022 to January 2024. (Exh. F, 1 PE 67.)

51. These claims are incorrect. There were hundreds of cases in general-time-waiver status throughout that period. Calles-Pineda's counsel was able to locate 419 cases that were in general-time-waiver status in May and June 2023; of those, more than half were public defender cases, and many had *never* been in no-time-waiver status. (Exh. W–H, Second Supplemental Declaration of Oliver Kroll, 10 PE 1971, ¶ 2–3; Exh. 51, list of selected general-time-waiver misdemeanor cases pending in May-June 2023, 10 PE 1973.)

52. The backlog was exacerbated by respondent court's failure to enforce continuance and speedy trial rules in its misdemeanor calendar department.

53. The Court routinely delayed cases past their statutory deadline for months on its own motion based on courtroom unavailability, without observing any of section 1050's procedural requirements, and without even asking the parties about their readiness. (See Exhs. 30–39, reporter's transcripts, 8 PE 1630–1692.)

54. Respondent court also frequently continued cases when the assigned district attorney was unavailable, in the absence of any motion to continue, and even in cases which did not qualify for vertical prosecution under section

1050(g); sometimes, it even continued cases when the District Attorney admitted that it was not ready and had not prepared for trial. (See Exh. 40, 8 PE 1700:25–1701:15; Exh. 41, 8 PE 1707:19–1708:3; Exh. 42, 8 PE 1714:19–1715:28; Exh. 43, 8 PE 1723:18–1724:7, 1728:9–26.)

V. Reasons for granting the writ

55. For the reasons given in the attached memorandum of points and authorities, respondent court abused its discretion in finding that good cause existed for continuing Calles-Pineda's trial.

56. This petition is timely, having been filed within sixty days of respondent court's order denying the motion to dismiss. It was not possible to file this petition before today's date because of the large volume of speedy trial litigation handled by my office in the wake of respondent court's order, which has so far involved hundreds of motions, eighteen writ petitions filed personally by the undersigned counsel, and dozens of transcript and court records requests.

57. Calles-Pineda is irreparably harmed by respondent court's order, since he must wait for trial despite being entitled to a dismissal. He has no plain, speedy or adequate remedy at law for respondent court's order. In particular, a postconviction appeal does not provide an adequate remedy for speedy trial claims: this "represents a considered policy judgment that defendants should seek review of speedy trial claims before trial." (*People v. Johnson* (1980) 26 Cal.3d 557, 574–575; accord *Wilson*, *supra*, 60 Cal.2d at p. 152 ["proper remedy" for erroneous denial of section 1382 motion is "petition for writ of mandate prior to the commencement of trial"].)

VI. Application to stay jury trial

58. For three reasons, this Court should stay the proceedings below pending the Court of Appeal's determination of the writ petitions in *Leibrand v. Superior Court*, no. A170134, *Mendoza v. Superior Court*, no. A170135 and *Bonner v. Superior Court*, no. A170183.

59. First, a stay, rather than a summary denial, would serve the interest of judicial economy. It would limit the number of urgent follow-on writ petitions that otherwise would be filed, would reduce the number of courts that must independently consider the same question, and would avoid the need for multiple written decisions. And it would enable this Court to rule with the benefit of further guidance from the Court of Appeal.

60. Second, Calles-Pineda would be irreparably harmed by being subjected to a jury trial, and possible conviction and imprisonment, despite being entitled to a dismissal under Penal Code section 1382. The statutory speedy trial right is designed to "protect the accused from having criminal charges pending against him for an undue length of time." (*Wilson*, *supra*, 60 Cal.2d at p. 151.) If a time-barred trial goes ahead, a postconviction appeal comes "too late" to remedy that injury. (*Ibid.*) That is why California courts insist that defendants "seek review of speedy trial claims before trial." (*Johnson*, *supra*, 26 Cal.3d 557, 574.) For that reason, appellate courts have frequently stayed trials to consider speedy trial claims.

61. Third, if the case proceeds to judgment, this petition might be rendered moot, since respondent court would lose jurisdiction, and this Court would therefore no longer be able to grant relief. (See *Wilson & Wilson v. City Council of Redwood City* (2011) 191 Cal.App.4th 1559, 1574.) A stay would eliminate this risk and give the Court time to properly consider Calles-Pineda's petition. Granting the stay now would also reduce inconvenience to

jury panel members, who might otherwise be summoned and then dismissed if this Court grants relief.

Prayer for relief

Calles-Pineda requests that this Court—

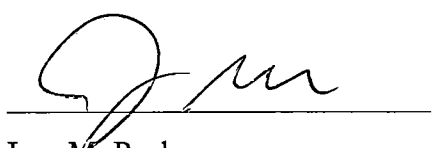
a. issue a stay to prevent respondent court from sending this case to trial;

b. defer consideration of this case pending the Court of Appeal's determination of the writ petitions in *Leibrand v. Superior Court*, no. A170134, *Mendoza v. Superior Court*, no. A170135, and *Bonner v. Superior Court*, no. A170183;

c. in the event that the Court of Appeal grants relief, issue a peremptory writ of mandate, directing respondent court to set aside its order denying Calles-Pineda's motion to dismiss and to enter a new order dismissing the case, or a peremptory writ of prohibition, directing respondent court not to take any further action in the case except for entering an order dismissing the case;

d. grant any other relief the Court deems just and proper.

Respectfully submitted,



Jess McPeake
Attorney for Petitioner

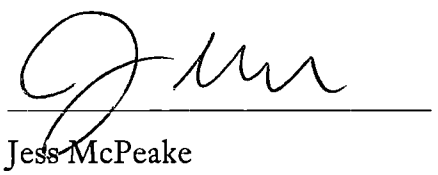
VERIFICATION

I, Jess McPeake, declare:

I am an attorney licensed to practice in California. I am employed by the San Francisco Public Defender. The Public Defender represents Willians Calles-Pineda. I know the facts alleged in this petition to be true based on my office's representation of the client. I, rather than the client, am verifying this petition because the facts it contains are more within my knowledge than his. (See Code Civ. Proc., § 446, subd. (a).)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on May 8, 2024, at San Francisco, California.



Jess McPeake

DECLARATION REGARDING ORDER AND TRANSCRIPTS

I, Jess McPeake, declare:

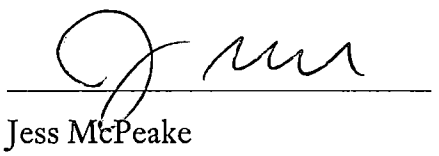
On May 8, 2024, I ordered expedited transcripts of the jury trial callings in this case and the denial of the motion to dismiss. They are expected to be produced shortly after respondent court uploads the JAVS audio recordings to the transcription service.

On May 8, 2024, I ordered a copy of the written order finding good cause to continue the trial and the written order denying Calles-Pineda's motion to dismiss. I am informed and believe that the second order's contents are substantially the same as the template order circulated by respondent court and attached to this petition.

I will file these documents with this Court as soon as I receive them.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on May 8, 2024, at San Francisco, California.



Jess McPeake

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MEMORANDUM OF POINTS AND AUTHORITIES

I. Standard of review

If a person charged with a misdemeanor is not brought to trial within the deadlines established by section 1382, the case must be dismissed unless good cause for the delay is shown. (Pen. Code, § 1382, subd. (a)(3).) The prosecution bears the burden of showing that exceptional circumstances existed, even when the continuance is on the court's own motion. (*People v. Hajjaj* (2010) 50 Cal.4th 1184, 1197; *People v. Santamaria* (1991) 229 Cal.App.3d 269, 277.)

A trial court's order denying a motion to dismiss pursuant to section 1382 is reviewed for abuse of discretion. (*Hajjaj*, *supra*, 50 Cal. 4th at pp. 1197–1198.) An order denying a motion to dismiss may be reviewed by a petition for a writ of mandate or prohibition. (*People v. Johnson* (1980) 26 Cal.3d 557, 573 fn. 18.) When seeking pretrial relief, a defendant need not show prejudice resulting from the violation of the speedy trial right. (*Id.* at p. 574.)

II. There was no justification for delaying Calles-Pineda's trial

Chronic congestion—"the excuse that there are too many cases and a shortage of judges to try them"—does not justify delaying a trial. (*People v. Gopal* (1985) 171 Cal.App.3d 524, 545–546 [citing *Rhinehart v. Municipal Court* (1984) 35 Cal.3d 772, 781–782].) On the other hand, delay may be excused when it is attributable to "exceptional circumstances"—"unique, nonrecurring events which have produced an inordinate number of cases for court disposition." (*Hernandez-Valenzuela v. Superior Court* (2022) 75 Cal.App.5th 1108, 1125.)

Hernandez-Valenzuela sanctioned felony trial delays in August and September 2021, shortly after respondent court reopened. (75 Cal.App.5th at p. 1136.) But it warned that the court could not "perpetually cite 'exceptional circumstances' to avoid dismissal under section 1382," adding: "[a]t some future point, should respondent court's backlog persist while courtrooms remain dark and unused for long stretches of time, a backlog that originated with the pandemic could transform into one that persists or grows due to court administration, or the nonuse of available judicial resources." (*Id.* at p. 1135.)

That point has now come. By late 2023, misdemeanor trial delays were the result of chronic congestion and could no longer be blamed on COVID-19. None of the circumstances that the Court of Appeal relied on in *Hernandez-Valenzuela* to find good cause exists any more.

First, consider the sheer length of time that has passed. In *Hernandez-Valenzuela*, the petitioners' trials were scheduled just weeks after the lifting of COVID-19 restrictions. The Court held that it was "not unreasonable for respondent court to not have addressed its backlog" in that short time, and also pointed out that the Governor's state of emergency was still in effect. (75 Cal.App.5th at p. 1128–1129.) It has now been two and a half years since courtrooms reopened. In December 2023, continuances were a daily routine, and could no longer be excused as a temporary response to a crisis.

Second, look at the makeup of the backlog. *Hernandez-Valenzuela* relied on the fact that the majority of backlogged trials "were cases whose last days fell during the 15-month period of constrained courtroom operations caused by the pandemic." (75 Cal.App.5th at p. 1130.) Here, by contrast, the misdemeanor backlog consisted of less than a hundred cases at reopening,

but skyrocketed in the years afterwards, at one point reaching more than a thousand cases.

Third, recall that *Hernandez-Valenzuela* dealt with in-custody felony trials. It approved the trial court's policy of refusing to send such trials to Civic Center on security grounds. (*Id.* at pp. 1133–1134.) No similar excuse exists in this misdemeanor case. Respondent court has long permitted all out-of-custody misdemeanor cases to be tried at Civic Center. But for a year and a half, it underused Civic Center so badly that, on most days, no misdemeanor trials were occurring there at all; on the days that a criminal trial was being held there, it was usually a lone trial in a single courtroom. Meanwhile, hundreds of routine civil cases were tried. In February 2023, respondent court then chose to allocate just two Civic Center courtrooms to criminal trials, and frequently allowed one or both of them to sit unused. These desultory steps "shortchange[d]" the criminal docket, and did not honor respondent court's duty to prioritize criminal trials over civil proceedings. (Pen. Code, § 1050, subd. (a); *Engram*, *supra*, 50 Cal.4th at p. 1156.)

When respondent court finally opened the entirety of Civic Center for misdemeanor trials in January 2024, it was able to slash the backlog by forcing prosecutors to dismiss cases on which they were not ready.

III. Respondent court's order fails to justify the trial delay

Respondent court issued a standard nineteen-page order holding that the COVID-19 pandemic still justified routine continuances in late 2023. This order entirely fails to establish good cause.

A. The order is unsupported by evidence, flouts statutory limits on judicial notice, and contains gross factual errors

The most basic problem with the order is that it is not supported by any evidence. Instead, respondent court purported to take judicial notice of a vast and ill-defined range of documents. Respondent court's attempt at judicial notice suffers from three fatal defects. Since the order's factual findings rest entirely on judicial notice, any one of these defects is enough to invalidate the order.

First, although a court may take judicial notice of the *existence* of court and other government records (Evid. Code, § 452, subds. (c), (d)), it may not notice the *truth* of statements contained in those records. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1565; *Kilroy v. State of California* (2004) 119 Cal.App.4th 140, 148; *Steed v. Dept. of Consumer Affairs* (2012) 204 Cal.App.4th 112, 120–122; *People v. Putney* (2016) 1 Cal.App.5th 1058, 1063 fn. 4; *Barri v. Worker's Compensation Appeals Board* (2018) 28 Cal.App.5th 428, 438; *In re Joseph H.* (2015) 237 Cal.App.4th 517, 541 ["We can take judicial notice of official acts and public records, but we cannot take judicial notice of the truth of the matters stated therein."])[6] Respondent court could thus judicially notice the the COVID-19 emergency declaration in 2020, the lifting of social distancing restrictions in 2021, and the end of the emergency

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[6] An earlier line of cases appeared to suggest that judicial notice could be taken of facts contained in "documents such as orders, findings of fact, conclusions of law, and judgments." (See *Sosinsky*, *supra*, 6 Cal.App.4th at p. 1564.) Modern cases, however, uniformly follow the *Sosinsky* rule that judicial notice extends to the existence of such documents, but not their truth. (See 1 Witkin, Cal. Evid. 6th Jud. Notice § 32 (2023).) To hold otherwise would be "to taking judicial notice that the judge's factual finding must necessarily have been correct and that the judge is therefore infallible." (*Sosinsky*, p. 1568.)

in 2023. But it was not permitted to rely on court records to conclusively establish facts about absences of "judicial staff members," COVID-19 exposures, and supposed shortages of bailiffs. Since the vast majority of respondent court's factfinding relies on improperly taking judicial notice of the truth of its own records, it cannot support the decision below.

Second, "[i]t is improper to rely on judicially noticed documents to prove disputed facts because judicial notice, by definition, applies solely to undisputed facts." (*Barri*, *supra*, 28 Cal.App.5th at p. 437.) Flouting this principle, the order tries to use judicial notice to mount a point-by-point rebuttal of Calles-Pineda's arguments. Judicial notice is a "shortcut," designed to save time by doing away with the need to prove facts that no one really disputes. (*Communist Party of USA v. Peek* (1942) 20 Cal.2d 536, 546.) It cannot be used to notice disputed facts, or—as it was here—to *generate* a dispute with the uncontradicted evidence presented by Calles-Pineda.

Third, when a court proposes to take judicial notice of a matter that is "of substantial consequence to the determination of the action," even when notice would otherwise be proper, it must give the parties a reasonable opportunity to "present to the court information relevant to (1) the propriety of taking judicial notice of the matter and (2) the tenor of the matter to be noticed." (Evid. Code, § 455, subd. (a).) Moreover, if the court relies on a source of information not received in open court—as it did here—it must make "the information *and* its source" part of the record and give the parties a reasonable opportunity to "meet" the information before taking judicial notice. (*Id.*, subd. (b) [emphasis added]; see *People v. Banda* (2018) 26 Cal.App.5th 349, 360; *People v. Alvarado* (S.F. App. Div. 2011) 193 Cal.App.4th Supp. 13, 18 fn. 3.) Respondent court failed to observe this "important procedural aspect" of judicial notice. (*Ibid.*) It only took judicial

notice upon issuance of its written decision denying the motion, depriving Calles-Pineda of notice and the opportunity to object. (*Banda*, p. 360.)

In this case, inquiry into the sources respondent court was using was especially important. For one thing, the order relied on a vast and amorphous class of documents—"records . . . relating to the COVID-19 global pandemic"—as well as several matters that were plainly not noticeable, such as an email from a sheriff's deputy, the court's "facilities," and the court's "operating procedures."[7] (See *People v. Aegis Security Ins. Co.* (2005) 127 Cal.App.4th 569, 574 [superior court's "case management procedures" not noticeable]; *LaChance v. Valverde* (2012) 207 Cal.App.4th 779, 783 [email exchange not noticeable].) Moreover, as a result of its irregular method of factfinding, the order contains serious errors. It wrongly accuses the public defender of trying to clog up the court by setting almost every case for trial; in fact, public defender clients waived time in hundreds of cases, showing that attorneys carefully considered the individual client's interest in advising whether to demand a speedy trial.

Without the improper judicial notice, there is no support for any of the factual findings in respondent court's order. The prosecution had the burden to present evidence in support of the trial continuance: it declined to do so, and the trial court erred by "attempt[ing] to fill in the blanks" using judicial notice. (*Banda*, *supra*, 26 Cal.App.5th at p. 360.)[8]

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[7] Evidence Code sections 451 and 452 only permit courts to judicially notice documents; they do not allow judicial notice of "facilities" such as buildings and courtrooms. And a judge's personal familiarity with the facilities in which he or she works is not a basis for judicial notice. (See *Estate of Fulcher* (1965) 234 Cal.App.2d 710, 719.)

[8] The order also relies on a case that was ordered depublished by our Supreme Court. This violates rule 8.1115(a) of the California Rules of

B. The order relies on claimed staffing problems and COVID-19 exposures, but those problems did not prevent hundreds of civil trials from being held

The order contains an extensive discussion of the court's staffing challenges and recent reported COVID-19 cases, based on judicial notice of unknown documents. Even if these facts were properly before this Court—which they are not—they do not justify the continuance for four independent reasons.

First, other than some dark days in January 2022, the order does not claim that any trial courtroom was actually *unable* to hold a misdemeanor trial because of staffing or a COVID-19 outbreak, which is the only way that such issues would be relevant to a good cause finding. Nor could it, since the court's own records reveal that hardly any dark days occurred for this reason. Arranging coverage is a routine part of court administration: absences simply mean that the court may have to reallocate judges in civil assignments to hear criminal trials, or call on visiting and retired judges, as the Court in *Hernandez-Valenzuela* recommended (*supra*, 75 Cal.App.5th at p. 1136), or reassign clerks performing other duties to trial courtrooms. More than two years after reopening, and absent evidence that courtrooms were actually closed, these administrative issues cannot excuse mass trial delays.

Second, the order adopts an inappropriately broad definition of "judicial staff members." It does not limit the group to staff members whose presence is essential to a misdemeanor trial. It counts the absences of court reporters as tipping in favor of good cause, even though misdemeanor trials are recorded using JAVS equipment and no court reporter is necessary. And

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Court, which bars courts from citing or relying on unpublished and depublished cases.

it is not clear whether it includes staff members, such as interpreters, who are not needed for most misdemeanor trials. Finally, it does not clarify whether the absences were for the entire month, or whether they include absences of a single day.

Third, the order fails to reconcile its assertions about the Sheriff's Department with the repeated statements by the Sheriff himself that he stood ready to provide the court with needed bailiff services. It fails to address the Sheriff's reallocation of 130 deputies to a drug enforcement task force, or his use of deputies on overtime to prevent theft at retail stores, policies which show that more deputies could have been assigned to bailiff duties.

Despite these quibbles, the order ultimately admits that the Civic Center Courthouse is capable of securely trying *five* criminal trials at once, using the dedicated criminal deputy and the four "floaters" that the Sheriff is contractually bound to provide. That being the case, the order fails to justify respondent court's decision to keep Civic Center unused for criminal trials on most days before February 2023, and to use only two courtrooms for criminal trials in the year that followed.

Fourth, and most fundamentally, the order fails to address the fact that, from July 2020 to June 2023, after proclaiming to the civil bar that all Civic Center courtrooms were "ready to go," respondent court held 950 unlimited and limited civil trials (including 117 civil jury trials), as well as 1,031 small claims trials. Each of these trials involving a judge and clerk, and each of the jury trials involved a bailiff. This rapid pace allowed respondent court to permanently clear its civil backlog in June 2022, while the misdemeanor backlog continued to grow. Whatever respondent court's staffing issues may have been, it was evidently able to hold a large volume of

civil trials, including jury trials, and has offered no explanation about why these resources could not have been redirected to the criminal docket.

C. The order relies on the need to address the felony backlog, but that does not explain the delay in opening Civic Center courtrooms for misdemeanor trials

The order admits that it only "turned its full attention to reducing the misdemeanor caseload" in January 2024, and justifies this delay by relying on the supposed need to clear the felony backlog first under Penal Code section 1048. It then purports to set a timeline for the end of good cause in the misdemeanor docket, keyed to the time that the felony backlog was cleared in January.

This reasoning is faulty, because nothing prevented respondent court from simultaneously addressing its felony and misdemeanor backlogs. By the court's own admission, the Civic Center Courthouse was not suitable for felony trials. The need to send out felonies first thus cannot excuse the slow pace of misdemeanor assignments to Civic Center since reopening. Instead, in prioritizing civil trials, the court violated Penal Code section 1050(a). Unlike section 1048, which merely controls the order that cases are called on the calendar, section 1050(a) forbids a court from shortchanging its criminal docket by assigning an inadequate number of criminal courtrooms. (*Engram*, *supra*, 50 Cal.4th at p. 1156.) That is exactly what respondent court did.

D. The order relies on an increase in charging and the prosecution's failure to prepare cases for trial, but those facts support dismissal

The order also cites an increase in misdemeanor charging, and the prosecution's failure to properly prepare cases for trial, in support of its good cause finding. But these facts support a finding that good cause did *not* exist. A "defendant's right to a speedy trial cannot be stifled by procrastination or

neglect by public officials." (*Jackson v. Superior Court* (1991) 230 Cal.App.3d 1391, 1393.) Likewise, an secular increase in charging rates is not the kind of "unique, nonrecurring event" that can justify trial delays. (*Hernandez-Valenzuela*, *supra*, 75 Cal.App.5th at p. 1125.) Both respondent court and the prosecution pin the blame on one another for the backlog. But as far as the speedy trial right is concerned, it does not matter who is at fault: either way, the *government* has failed to honor Calles-Pineda's right to a speedy trial. (Cf. *Barker v. Wingo* (1972) 407 U.S. 514, 531.)

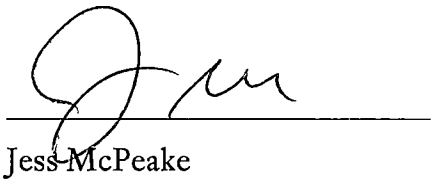
IV. The length of the delay was excessive

Finally, the continuances were unjustified because their length was excessive in two respects. *First*, a continuance can only be granted "for that period of time shown to be necessary by the evidence considered at the hearing on the motion." (§ 1050, subd. (i); accord *People v. Sutton* (2010) 115 Cal.App.4th 533, 546 ["length" of delay relevant to whether good cause existed].) Here, of course, the temporary unavailability of courtrooms was not good cause: but even if it was, it could have justified one or two days' delay at the most, not months. *Second*, the Court improperly added a ten-day grace period to the last day. But this grace period is only applicable if the defendant requests or consent to the delay. (§ 1382, subds. (a)(2)(B), (a)(3)(B).) If the defendant objects, there is no grace period, and the date to which trial is continued "is the day trial *must* begin, assuming defense counsel announces 'ready' and good cause does not exist to justify a *further* delay." (*People v. Superior Court* (*Alexander*) (1995) 31 Cal.App.4th 1119, 1131.) For this independent reason, the writ should issue.

V. Conclusion

The Court should stay trial proceedings, defer consideration of this petition pending the Court of Appeal's determination of the writ petitions in *Leibrand v. Superior Court*, no. A170134, *Mendoza v. Superior Court*, no. A170135, and *Bonner v. Superior Court*, no. A170183, and then issue a writ if the Court of Appeal grants relief.

Respectfully submitted,

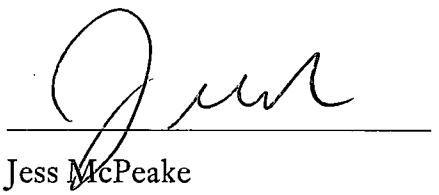


Jess McPeake
Attorney for Petitioner

WORD COUNT CERTIFICATE

I certify that the attached petition with memorandum of points and authorities contains 6,546 words, not including the caption, index, tables, verification, and this certificate.

Executed on May 8, 2024, at San Francisco, California.



Jess McPeake